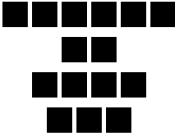
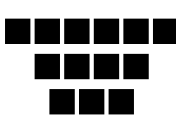
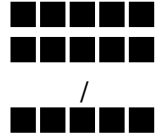
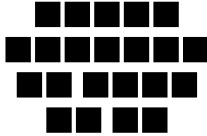


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0		Regarding the Punjab Goods and Services Tax (Amendment) Bill, 2024. :- 1.0 The Punjab Goods and Services Tax (Amendment) Bill, 2024 seeks to make amendments to the Punjab Goods and Services Tax (PGST) Act, 2017 in accordance with the recommendations of the Goods and Services Tax Council (hereinafter referred to as “the Council”), established under Article 279A of the Constitution of India. 1.1 The Goods and Services Tax regime was introduced in the country with effect from the 1st July, 2017. Amendments in Central Goods and Services Tax (CGST) Act, 2017 and Integrated Goods and Services Tax (IGST) Act, 2017 are made from time to time by the Central Government on the recommendations of the GST Council. In order to bring uniformity and conformity with the CGST Act, 2017, the similar	Ravjot Singh	

amendments are also made in PGST Act, 2017 by the Punjab Government. Recently the following amendments have been made by the Central Government in the CGST Act, 2017.

1.1.1 The Central Government has published The Finance Act, 2024 (Act 8 of 2024) on 15-02-2024 (**Annexure – 'A'**). Vide sections 11-13 of this Finance Act, sections 2 (61) and 20 of CGST Act, 2017 have been amended and new section 122A has been inserted in CGST Act, 2017.

1.1.2 Further, the Central Government has published The Finance Act (No. 2) Act, 2024 on 16-08-2024 (**Annexure – 'B'**). Vide sections 114-150 of this Finance Act, various sections of CGST Act, 2017 have been amended.

1.1.3 Further also, it may be mentioned that section 168A was inserted in the PGST Act, 2017 by enactment of the Punjab Goods and Services Tax (Second Amendment) Act, 2020 (Punjab Act No. 16 of 2020) (**Annexure – 'C'**). This Amendment Act was

published in the Government Gazette on 15th October, 2020, whereas section 168A was to be given retrospective effect from 31st March, 2020 in accordance with that effect in the CGST Act, 2017, but which inadvertently could not be done in the Punjab Goods and Services Tax (Second Amendment) Act, 2020. Therefore, accordingly, an amendment to that effect in section 168A of PGST Act, 2017 is proposed.

1.2 The legal opinion to give retrospective effect to Section 168A of the Punjab Goods and Services Tax Act, 2017 from 31st March, 2020 was sought from the Department of Legal and Legislative Affairs, Punjab was sought. The opinion so received vide Letter No *U.O. No. 311/Leg.245/2024* Dated, *Chandigarh, the 20/08/2024* is reproduced hereunder: -

"The file has been received in this department with regard to the advice tendered by this department vide U.O. No. 294/Leg. 235/2024 dated 07.08.2024 (**Annexure –D**) wherein, apart from tendering four point advice on the proposal of the A.D. for amending the Punjab Goods and Services Tax Act, 2017 on the lines of the Central Goods

and Services Tax Act, 2017, it was mentioned that section 168A was inserted by way of the Punjab Goods and Services Tax Act (Second Amendment) Act, 2020 (Punjab Act No. 16 of 2020) and as per sub-section (2) of section 1 of the said amending Act, section 168A was to come into force on such date as the Government of Punjab may, by notification in the Official Gazette, appoint. It was further mentioned in the advice that it appears that notification in this regard could not be issued by the A.D. inadvertently and the A.D. now intends to give retrospective effect to section 168A by carrying out amendment in the Punjab Goods and Services Tax Act, 2017. In this behalf, it was stated that to achieve the said purpose, there is no need to amend the Act as the same can be achieved by issuing a notification.

However, from the perusal of the file it is revealed that the A.D. is of the view that section 168A may be made effective retrospectively w.e.f. 31.03.2020 by including an Explanation in section 168A in the draft of the Punjab Goods and Services Tax Act (Amendment Bill), 2024. The reason behind the same, as is revealed from para No. 3 at N.P. 4 of A.D.'s file, is that it will not be appropriate to issue a

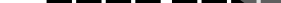
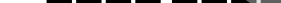
notification fixing the commencement of section 168A as 31st March, 2020, as it will be a date prior to the date of passing of the Punjab Goods and Services Tax (Second Amendment) Act, 2020 (Punjab Act No. 16 of 2020) through which the said section was inserted in the Punjab Goods and Services Tax Act, 2017 vide notification dated 15th October, 2020.

In this behalf it is stated that vide notification No. S.O.43/P.A.16/2020/S.1/2021, dated 22nd March, 2021 the provisions of section 11 of the Punjab Goods and Services Tax (Second Amendment) Act, 2020 were also brought into force by the A.D. from 18th May, 2020 i.e. prior to the date of notification (15th October, 2020) of the said amending Act. The said notification was also issued in exercise of the powers conferred by sub-section (2) of section 1 of the said amending Act of 2020. However, if the A.D. is of the view that the purpose of giving retrospective effect to section 168A is required to be achieved by incorporating an Explanation to that effect in the proposed Bill, then it may decide the same at its own level. The A.D. is, however, advised that such a situation may

		be avoided in future by taking a conscious decision at the initial stage with regard to the commencement of any amending/new provision". 1.3 In view of the above opinion of Id. L.R Punjab, the department proposes to amend section 168A of the PGST Act, 2017 retrospectively with effect from 31st March, 2020 in accordance with the amendment in CGST Act, 2017 by inserting an Explanation through this amendment bill.		
0		Regarding the payment of the work of removing dead animals from the limits of the Municipal Corporation :- Payment for the work of lifting dead animals from the limits of Municipal Corporation. It is stated that the contract of lifting of dead animals from the city by the Municipal Corporation was allotted to Mr. Deen Das S / o Mr. Bhangi Das, Kharar for a period of one year in the amount of Rs. 34500 / - from 29-06-2022 to 24-6-2023. Now Sri Deen Das s / o Sri Bhangi Das passed away on 9-3-2023. Attached is the death certificate. Because the work of picking up dead animals from the limits of the municipal corporation comes in a very essential service. Every day 3 to 4 animals die in the city. It is important to take care of these animals. So that no epidemic of any kind spreads in Gaushala and the city and does not hurt the religious sentiments of the people. This work is being done on contract basis as the Municipal Corporation does not have any road space of its own. If fresh bids are made for lifting of dead animals, it may take about 2 months. This work was allotted to Shri Deen Das S / o Shri Bhangi Das dated 24-06-2023. Now the wife of the	Gurmeet Singh Khudian	

	deceased has given an affidavit that till the expiry date of the contract: 24-06-2023, she has been carrying out the work of picking up dead animals from the city through her son and labor. Therefore, the contract should be paid to her as she is the legal wife of the deceased and also a nominee. The work of lifting the dead animals from the limits of Mohali was given to Mr. Deen Das till 24-06-2023 but suddenly the contractor died on 9-3-2023. However, the wife of the deceased has given an affidavit that she is getting this work done through her son and labour. So he should be paid for his work. After the approval of the Hon'ble Commissioner Municipal Corporation, the approval was given by the Hon'ble Mayor in the hope of passing it in the upcoming meeting of the House. The said case is submitted for the approval of the Hon'ble House.	
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